Promoting Innovation Worldwide

UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Interconnection of Large Loads to the Interstate Transmission System — Docket No. RM26-4-000

Comments of the Information Technology Industry Council

The Information Technology Industry Council (ITI) appreciates the opportunity to comment on the proposed advanced notice of proposed rulemaking (ANOPR) issued by the Federal Energy Regulatory Commission (FERC) on October 27, 2025.

ITI is the premier global advocate for technology, representing the world's most innovative companies. Founded in 1916, ITI is an international trade association with a team of professionals on four continents. We promote public policies and industry standards that advance competition and innovation worldwide. Our diverse membership and expert staff provide policymakers with the broadest perspective and thought leadership from technology, hardware, software, services, and related industries. ITI represents a broad spectrum of stakeholders within the energy and artificial intelligence (AI) ecosystem, including data center developers, owners, operators, end-users, technology providers, power purchasers, energy distributors, and AI developers and users. We represent hyperscale, co-location, cloud, and enterprise data centers.

ITI welcomes Secretary Wright's directive to FERC to initiate a rulemaking process regarding large load interconnection. The timely and orderly connection of data centers to the bulk power system is one of our top priorities, and American innovation and leadership in the AI race hinges on the ability of data centers to quickly secure power from the grid. As there are currently no FERC regulations governing load-side interconnection, FERC's rulemaking regarding this process would standardize the patchwork of interconnection processes that exist on the grid-operator level, allow for direct connection to bulk transmission, and standardize a very diverse retail electric market for large loads.

ITI generally supports the principles listed in Secretary Wright's directive. In the next section, ITI details responses to specific principles of note.

Principle Two: "The reforms should only apply to new loads greater than 20 MW."

ITI suggests that the minimum load threshold be adjusted to 75MWs in order to not overburden the process.

Principle Three: "Load and hybrid facilities should be studied together with generating facilities."

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ITI supports the principle that load and generation should be studied together. We would like to clarify that this should not be limited to colocation arrangements. If new generating facilities are located at or near new load facilities, then they would both require less transmission and distribution upgrades than if they were studied separately. The bundling of new generation and load in interconnection studies would streamline efficiencies and necessitate fewer system upgrades.

Interconnection studies should comprehensively model large load customers' generation colocation arrangements, curtailment abilities, or arrangements with other parties that would result in fewer upgrades. Fewer system upgrades resulting from interconnection studies lead to faster energization timelines for large loads requesting interconnection. This serves as a considerable incentive for new large loads to evaluate and propose configurations that would result in fewer system upgrades, and utilities should provide guidelines for interconnection customers to arrange configurations that would minimize the time and expense of upgrades needed to connect to the grid. FERC should also consider introducing a cluster study process for large loads, similar to the cluster study process in Order 2023 for generation.

Principle Four: "Like generating facilities, load and hybrid facilities should be subject to standardized study deposits, readiness requirements, and withdrawal penalties."

ITI supports the principle that loads should be subject to standardized study deposits, readiness requirements, and withdrawal penalties. This would reduce the number of speculative projects and provide more certainty to the interconnection queue. However, we would like to caveat that penalties for withdrawal must be applied surgically. As large load customers may be evaluating multiple sites at once, the withdrawal penalties should be based on the amount of time spent in the queue, study costs, and the withdrawal's impact.

Principle Seven: "The interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited."

ITI agrees that hybrid projects and large loads that agree to be flexible according to operational standards that result in fewer transmission or generation investments would lead to reduced energization timelines. However, the prioritization of study queues based on the ability to be curtailable may lead to inconsistent policy priorities and raise significant questions around non-discriminatory and non-preferential access. Regulators should take into account the complexity of this issue in practice, and curtailment should be voluntary and not mandatory. Not all large loads are able to reduce their load flexibly and shift load across time or geographic areas. Sometimes, curtailing load from the grid involves firing backup generators, which are bound by existing air permit laws and noise control. Clear guidelines are needed to define the amount of flexibility and the duration of response expected.

Principle Eight: "Load and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through the interconnection studies."

ITI supports the principle that large loads should be responsible for 100% of the network upgrades assigned through the interconnection study results. However, large-scale regional network upgrades, such as those planned through regional transmission planning processes, spread a wide range of benefits to a wide range of customers. Large loads should be responsible for 100% of the upgrades directly triggered by their interconnection to the extent that those upgrades do not convey broader benefit to other grid customers. On the other hand, when upgrades do provide broader benefits, costs should be allocated in accordance with their benefits. Any rulemaking by the Commission should maintain consistent "beneficiary pays" cost allocation principles, as directed by Order 1920/1920-A. The tech industry is committed to paying our full cost of service and our fair share of new transmission costs.

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ITI appreciates the Commission for its attention to this important issue and the opportunity to provide comments. As the Commission commences the rulemaking process for large load interconnections, we look forward to engaging with the Commission to ensure that large load interconnection rules allow for greater certainty, transparency, expediency, and workability. Should you need more information, or if you would like to schedule a follow-up discussion, please contact Caroline Li, Manager of Policy, at cli@itic.org.

Respectfully submitted,

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